

The Gazette of Pakistan



**EXTRAORDINARY
PUBLISHED BY AUTHORITY**

ISLAMABAD, TUESDAY, April 7, 2015

PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW, JUSTICE AND HUMAN RIGHTS

NOTIFICATION

Islamabad, the 7th April, 2015

S. R. O. 277 (I)/2015.—In exercise of the powers conferred by section 25 of the Publication of Laws of Pakistan (Regulation) Ordinance, 2015, the Federal Government is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the Publication of Laws of Pakistan Rules, 2015.

(2) They shall come into force at once.

2. **Definitions.**—(1) In these rules, unless there is anything repugnant in the subject or context,—

(a) “Cell” means the laws of Pakistan Cell established under section 6 of the Ordinance;

(b) “Director” means the Director of the Cell;

(1247)

- (c) "Ordinance" means the Publication of Laws of Pakistan (Regulation) Ordinance, 2015;
- (d) "publisher" means a person who is publishing or who intends to publish any law of Pakistan in the form of a book, booklet, pamphlet, journal, or in any electronic form, and also includes a person who is involved in the publication of laws of Pakistan along with any other business; and
- (e) "reviewer" means a person who reviews a law of Pakistan under the Ordinance and these rules.

(2) All other words used but not defined herein shall have the same meanings as are assigned to them under the Ordinance.

3. **Registration of publishers.**—(1) All the publishers who are involved in the publication of laws of Pakistan shall, within ninety days of the commencement of the Ordinance and in accordance with the procedure laid down in these rules, get themselves registered with the Cell.

(2) Subject to sub-rule (1), an application containing all the particulars as specified in Form 'B' shall be submitted to the Cell.

4. **Registration fee.**—(1) Any publisher seeking registration with the Cell shall pay one time registration fee of one hundred thousand rupees to the Cell and thereafter an annual fee of twenty thousand rupees within thirty days of the expiry of first year of his registration.

Explanation.—The one time registration fee of one hundred thousand rupees shall include the annual fee for the first year.

(2) The registration fee, annual fee, review fee and the amount received by way of fine imposed by the Cell or any other amount received by the Cell under the Ordinance and these rules, shall be deposited in a separate account maintained for this purpose in the accounts office of the Cell thus forming part of Federal treasury.

5. **Undertaking for registration.**—Any publisher who applies for registration shall submit an undertaking to the Cell to the effect that the publisher shall,—

- (a) publish the laws of Pakistan on a paper the impression on one side of which is not visible from the other side and if newsprint is used, it should not be of less than 52 grammage;

- (b) before submission to the Cell, get his specimen copy of the proposed publication of a law of Pakistan compared with the text of the official publication of laws of Pakistan as published in the official Gazette, by a person holding a law degree from a recognized university or a person trained in the job of proof reading of legal publications, and have a statement recorded in writing by such a person that the contents of the laws of Pakistan reproduced in the publication are accurate;
- (c) ensure that the cover page of every edition or publication of a law of Pakistan clearly bears the name and registration number of the publisher, the batch number of the publication, the name of the printer or database operator, and the day, month and year till which it has been updated;
- (d) write his name and registration number along with the date of publication, on each page of his publication;
- (e) publish the laws of Pakistan after obtaining the certificate of accuracy from the Cell;
- (f) print the certificate of accuracy at a conspicuous place in the publication to which it relates;
- (g) evolve a mechanism to ascertain the identity and address of his customers, subscribers and book-sellers, who purchase the publications from him, in order to ensure recalling of any published material which is published in contravention of the Ordinance and these rules; and
- (h) in case the publisher is a corporation, provide a copy of the Articles and Memorandum of Association to the Cell along with the names of Directors, Managers and other office bearers of that corporation.

6. **Registration number.**—On fulfilling the requirements under rules 4 and 5, a publisher shall stand registered and upon registration, the Cell shall allot a distinct registration number to that publisher.

7. **Grounds for de-registration.**—(1) A publisher may be de-registered by the Cell on violation of any of the provisions of undertaking enumerated under rule 5, or in default of any amount of fee or fine under rule 4, or not fulfilling the requirements under sub-rule (7) of rule 9 or rule 10.

(2) The Cell shall not pass an order of de-registration of a publisher unless the publisher has been served a notice and afforded an opportunity of hearing.

8. Terms and conditions of Director and other employees of Cell.—(1) The Cell shall be headed by a Director who shall be appointed by the Federal Government on Management Position Scale-III (MP-III), and shall be a law graduate with sufficient experience of proof reading of laws, translation of laws, maintaining and updating of law books, journals, etc., administration and management.

(2) The Federal Government may also appoint as many Deputy Directors, Assistant Directors, and other staff members on market based salary as may be required for the efficient working of the Cell including the maintenance of accounts of the Cell, the internal auditing of the Cell and the enforcement of the functions of the Cell under the Ordinance and these rules.

(3) The minimum qualifications for the employees of the Cell appointed under sub-rule (2) shall be specified in the advertisement in the newspapers by the Federal Government.

(4) At least one office of the Cell shall be established in the Law Department of each Province, headed by a Deputy Director who shall be appointed by the respective Provincial Government on market based salary and shall be a law graduate with sufficient experience of proof reading of laws, translation of laws, maintaining and updating of law books, journals, etc., administration and management.

(5) A Provincial Government may appoint as many Assistant Directors and other staff, on market based salary, as may be required for the efficient working of the office of the Cell established in the Law Department of that Province.

(6) The minimum qualifications for the employees of the office of the Cell appointed under sub-rule (5) shall be specified in the advertisement in the newspapers by the respective Provincial Government.

9. Certificate of accuracy.—(1) Any registered publisher, seeking review from the Cell, of the laws of Pakistan to be published by him shall, after payment of review fee, send ten copies of the material to be reviewed in double space and 'font 14', along with ten Gazette copies of the official publication relating to the material to be reviewed.

(2) The review fee shall be one rupee per word and the number of words shall always be counted through the facility of 'word counter' in the computer.

(3) The review fee received from the review of a Provincial law shall be deposited in the treasury of the respective Province and the fee received from the review of a Federal law shall be deposited in the accounts office of the Cell.

(4) The Cell shall, within a maximum period of sixty working days from the date of submission of publication material to be reviewed, complete the review, correct errors and issue certificate of accuracy thereon in the manner specified in Form 'A' to these rules.

(5) The certificate of accuracy obtained by the publisher shall be conclusive proof for the publisher for having fulfilled all the requirements under the Ordinance and these rules.

(6) After the issuance of certificate of accuracy, if the Cell finds, on its own or through any person, that an error exists in the publication in respect of which the certificate of accuracy was issued, the Cell shall recall all the publications published by the publisher containing such error and return the same to the publisher after rectifying the error at the expense of the Cell.

(7) Any publication referred to in sub-rule (6), if has been sold by the publisher, shall be recalled by the publisher for onward transmission to the Cell for rectification of error under sub-rule (6).

10. Supply of copies by the publisher.—A publisher who, after obtaining the certificate of accuracy, publishes laws of Pakistan shall send twenty copies thereof, free of cost, to the Cell.

11. Responsibility of book-sellers.—(1) On the commencement of these rules, all the book-sellers shall purchase the publications containing the laws of Pakistan only from a publisher registered under these rules.

(2) In order to safeguard the interest of end consumers, the book-sellers shall also ensure that all the publications purchased under sub-rule (1), contain a certificate of accuracy issued by the Cell.

12. Filing of complaint by Cell.—The Director of the Cell in case of Federal Government and the Deputy Director of the office of the Cell in case of Provincial Government may authorize any Assistant Director to file a complaint with the Session Judge under the Ordinance.

FORM 'A'

[See rule 9(4)]

CERTIFICATE OF ACCURACY BY THE CELL

I NAME _____ S/o NAME _____ working as DESIGNATION _____, in the Laws of Pakistan Cell, established in the Ministry of Law, Justice and Human Rights, Islamabad, hereby certify on THIS ____ day of MONTH _____ 20 YEAR _____ that the material containing the laws of Pakistan, comprising _____ number of pages and _____ number of words, received through application number _____ from the Publisher NAME _____ duly registered with the Cell vide Registration number _____, intended to be published by the publisher for batch number _____ of his publication, has been reviewed and made absolutely free from errors, hence is fit for publication.

FORM 'B'

[See rule 3(2)]

APPLICATION

An application made under sub-rule (2) of rule 3 of the Publication of Laws of Pakistan Rules, 2015 shall be accompanied by the following documents:—

- (i) Name and legal personality of the publisher
- (ii) Registration number of legal personality of publisher
- (iii) Address of the publisher
- (iv) National Taxation Number of the publisher
- (v) General Sales Tax Number of the publisher

[F. No 2(1)2015-Pub.]

SHAHBAZ AHMED GILL,
(Printing/Publication) Officer.